Rahul Juneja vs State (Govt, Of Nct Of Delhi) & Anr on 13 September, 2022

Author: Yogesh Khanna

Bench: Yogesh Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.M.C. 2009/2021
   RAHUL JUNEJA
                    Through: Mr.Karan Lahiri, Mr.Go
                             and Ms.Sayani Dey,
                             petitioner in perso
                    versus
   STATE (GOVT, OF NCT OF DELHI) & ANR. ..... Responde
                    Through: Mr.Amit Sahni, APP for
                             with ASI Vishram, P
                             Mahal.
                             Ms.Mallika Parmar,
                             R-2 in person.
   CORAM:
   HON'BLE MR. JUSTICE YOGESH KHANNA
                    ORDER

% 13.09.2022

1. This petition is filed for quashing of FIR No. 380/2020 registered under Sections 376 IPC at police station Maurya Enclave, Delhi.

2. The present FIR was registered on the basis of complaint of made under Section 156(3) Cr.P.C. wherein the complainant stated she met the accused in the year 2000 while she was working in Olive restaurant, Mehrauli Delhi where the accused was also working. The accused became friendly with her and they both became close friends. In the year 2001 the accused put vermilion at her forehead and made physical relations with her for the first time at Gurugram. However, she was already married with one Bira Kishore Nayak at the age of 12 and as she was harassed by her husband she left him in the year 1990. It is alleged after first incident of rape the complainant came to know the accused was married with one Sushma Juneja. After that she had started ignoring the accused and in 2004 she was blessed with a baby girl. In 2007 accused again contacted her and stated his marital life is not going well and he was divorcing his wife. He promised to marry with the complainant and made physical relations with the complainant on different occasions at different places and put vermilion in a temple at Munirka, Delhi. All this continued till 2018. The prosecutrix got divorced on 04.12.2018 from her husband but later the petitioner backed out of his promise and she filed a complaint under Section 376 IPC. Learned MM gave direction for registration of FIR the present FIR was registered. The chargesheet has since been filed.

3. A bare perusal of order dated 09.09.2021 would show earlier the petitioner had approached this Court by filing CRL.M.C.1221/2021 on the ground he has entered into a compromise with the prosecutrix but it was dismissed as withdrawn with liberty to take recourse in accordance with law, hence, the present petition is being filed on merits.

4. It is the submission of learned counsel for the petitioner the complainant/prosecutrix, admittedly was married with one Bira Kishore Nayak since 1985 and she got divorce from her husband only on 04.12.2018 and whereas the incidents which the respondent has alleged in her FIR also pertain to the years 2007 till 2018. Hence it is submitted since the prosecutrix was not competent to marry during this period she cannot allege she was duped/induced at the pretext of marriage for indulging in sexual intercourse. Heard.

5. In Prashant Bharti V. State (NCT of Delhi) (2013) 9 SCC 293 the Hon'ble Supreme Court held as under :

> 23.xxx 23.1 xxx 23.7 Seventhly, as per the judgment and decree of the Civil Judge (Senior Division), Kanpur (Rural) dated 23.9.2008, the complainant was married to Lalji Porva on 14.6.2003. The aforesaid marriage subsisted till 23.9.2008. The allegations made by the complainant dated 16.2.2007 and 21.2.2007 pertain to occurrences of 23.12.2006, 25.12.2006, 1.1.2007 and - 15.2.2007, i.e., positively during the subsistence of her marriage with Lalji Porwal. Thereafter, the complainant Priya married another man Manoj on 30.9.2008. This is evidenced by a □certificate of marriage dated 30.9.2008. In view of the aforesaid, it is apparent that the complainant could not have been induced into a physical relationship, based on an assurance of marriage.

6. In Mohit Nagar V. State & Anr. 2017 SCC Online Del 7616, it was held as under :

> 9. The whole basis of FIR No.135/2016 registered against the petitioner by the respondent No.2 is that on 8th December, 2015 they interacted at shadi.com and where after they met each other at Defence Colony market and the petitioner proposed to marry her and insisted on getting physically involved with her. It is the case of respondent No.2 that on the assurance, inducement and promise of marriage she agreed to have sexual intercourse with him. Admittedly, the marriage of respondent No.2 with Naveen had not been dissolved by decree of divorce nor was it declared a nullity when the alleged offence took place from December 2015 till 3 rd April, 2016 where after the respondent No.2 lodged the above-noted FIR on 6th April, 2016. When respondent No.2 could not have lawfully married the petitioner on 3rd April, 2016 her allegations that the petitioner played fraud on her in receiving her consent for marriage are unfounded.

Thus, even taking the allegations on the face of it on the basis of documents of impeccable character in the form of FIR No.138/2015 lodged at New Ashok Nagar and order dated 9th March, 2016 passed in (HMA No.244/16) the ingredients of offence punishable under Section 376 IPC are not

made out.

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11. The stand of respondent No.2 in the present petition is that after grant of bail, the petitioner refused to marry her. This cannot be ground to reject the petition filed by the petitioner if on undisputed facts and material collected during investigation, no case is made out against the petitioner to proceed further in the charge-sheet filed. Applying the test laid down by the Supreme Court in Rajiv Thapar (supra) it is a fit case where the FIR and the proceedings pursuant thereto are liable to be quashed to prevent the misuse of the criminal justice system and also to prevent the abuse of the process of the Court.

7. Further in Manoj Bajpai V. State of Delhi 2015 SCC Online Del 9751, it was held as under :

> 15. A bare perusal of these averments made in the FIR reflects that the marriage of the complainant was subsisting when she started living with the petitioner and having physical relation with him. She was not married to the petitioner but as per the allegations she was kept "as his wife". There was physical relation between the two. Physical relationship was consensual. The FIR was lodged because the petitioner had stopped giving household expenses. Keeping in view the fact that both, the complainant and the petitioner were major and there is no allegation that the physical relation was induced by any extraneous consideration, the allegations per se do not attract the provisions of Section 376 IPC. However, when statement of the complainant was recorded u/s 164 Cr.P.C. at that time she took the plea that her objectionable photographs were taken by the petitioner by applying narcotic on her and that the petitioner told her that they will get married soon but he was now backing out from his promise of marriage, as such she wanted legal action against him.
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> 17. In view of the same, as seen above, the first version as disclosed in the complaint made by the complainant does not disclose any offence u/s 376 IPC. It is only subsequently in her statement u/s 164 Cr.P.C.

that the complainant has tried to take a plea that her objectionable photographs have been taken after applying narcotic drugs on her or that her consent was obtained on the promise to marry her. Obviously an inducement for marriage is understandable if the same is made to an unmarried person. It is a matter of record that the petitioner was already a married person having children during the period as stated in the FIR. Same is the case with complainant. xxx

8. Thus considering the above, where the prosecutrix was married during the time she was in relation with the present petitioner hence she cannot allege she was raped on pretext of marriage. The law cited shows she has no case since during such period she herself was incompetent to marry.

Besides above the matter has amicably been settled between the parties and that the petitioner has also agreed to cooperate with the prosecutrix in getting quashed a cross FIR No.25/2021 registered under Section 468/471 IPC at police station Maurya Enclave, there is no impediment in quashing of the FIR.

9. Accordingly, the petition is allowed. Consequently, FIR No. 380/2020 registered under Sections 376 IPC at police station Maurya Enclave, Delhi and the proceedings emanating therefrom are quashed. Pending application, if any, also stands disposed of. No order as to costs.

YOGESH KHANNA, J.

SEPTEMBER 13, 2022 VLD